IMPARTIAL ANALYSIS OF MEASURE "U"

Overview of Measure U. Measure U is a referendum regarding City of Banning Ordinance No. 1618 which was adopted by the Banning City Council on April 14, 2026, (the "Ordinance"). The Ordinance amends the City's official zoning map and approves a zoning change for property located south of Interstate 10 and the Union Pacific Railroad, and west of Sunset Avenue. The Measure was placed on the ballot by a referendum petition signed by the requisite number of voters. If Measure U is approved, the Ordinance will become effective. If the Measure U is not approved, the Ordinance will not become effective.

Ordinance and Zoning Change. The Ordinance amends the City's official zoning map and approves zone change 20-3502 and more specifically applies to Assessor Parcel Numbers (APNs) 537-110-003 through -005 and 537-110-011 through -014 as well as pre-zoning of property located in the City of Banning's Sphere of Influence located south of the northern boundary of Western Avenue and west of Sunset Avene (APNs 537-120-013, 537-120-025, and 537-120-028 through -036), which is subject to annexation into the City of Banning subject to the approval of the Local Area Formation Commission ("LAFCO").

The Ordinance amends the zoning for the property from High Density Residential, Medium Density Residential, Low Density Residential, General Commercial and Open Space - Resource and Open Space — Parks, where applicable, to "Specific Plan - Sunset Crossroads" to General Commercial (GC), Industrial (I), Open Space — Parks (OS-P), and Open Space — Resources (OS-R) land uses pursuant to the Sunset Crossroads Specific Plan adopted pursuant to Resolution 2026-29.

If the Ordinance is approved by the voters the owner of the property, NP Banning Industrial, LLC will be able to build a project that includes General Commercial (GC), Industrial (I), Open Space - Parks (OS-P), and Open Space - Resources (OS-R) land uses pursuant to the Sunset Crossroads Specific Plan adopted pursuant to Resolution 2026-29. If the Ordinance is not approved by the voters, the Ordinance will not become effective and the property will remain zoned High Density Residential, Medium Density Residential, Low Density Residential, General Commercial and Open Space - Resource and Open Space — Parks.

Summary:

A "Yes" vote by a majority of those voting on Measure U means Ordinance No. 1618 will become effective.

A "No" vote by a majority of those voting on Measure U means Ordinance No. 1618 will not become effective.

The above statement is the impartial analysis of Measure "U." If you desire a copy of the Ordinance or Measure, please call the City Election Official's Office at (951) 922-3102 and a copy will be mailed to you at no cost.

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John O. Pinkney, City Attorney